

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Team # 5	CCRB Case #: 201211074	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 08/26/2012 3:30 AM	Location of Incident: § 87(2)(b) [REDACTED]	18 Mo. SOL 2/26/2014	Precinct: 113
Date/Time CV Reported Sun, 08/26/2012 6:25 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 08/26/2012 6:26 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM George Brancaccio	30822	936236	113 PCT
2. POM Patrick Donofrio	10520	941613	113 PCT
3. Officers			
4. SGT Sonia Christian	03066	925077	113 PCT
5. POM Matthew Vorraro	15194	939668	113 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM John Dammacco	05546	946892	113 PCT
2. SGT Jared Hospedales	03299	936782	100 PCT
3. POM Ryan Doherty	20696	951684	PBQ/S
4. POM Christopher Distefano	23840	950332	PBQ/S

Officer(s)	Allegation	Investigator Recommendation
A . SGT Sonia Christian	Force: At § 87(2)(b) [REDACTED] in Queens, Sgt. Sonia Christian used physical force against § 87(2)(b) [REDACTED]	A . Complaint Withdrawn
B . POM Matthew Vorraro	Force: At § 87(2)(b) [REDACTED], in Queens, PO Matthew Vorraro used physical force against § 87(2)(b) [REDACTED]	B . Complaint Withdrawn
C . Officers	Force: At § 87(2)(b) [REDACTED], in Queens, officers used physical force against § 87(2)(b) [REDACTED]	C . Complaint Withdrawn

Officer(s)	Allegation	Investigator Recommendation
D . Officers	Force: At § 87(2)(b), in Queens, officers used physical force against § 87(2)(b)	D . Complaint Withdrawn
E . Officers	Force: At § 87(2)(b), in Queens, officers used physical force against an individual identified as § 87(2)(b)	E . Complaint Withdrawn
F . POM George Brancaccio	Force: At § 87(2)(b), PO George Brancaccio used physical force against § 87(2)(b)	F . Complaint Withdrawn
G . POM Patrick Donofrio	Force: At § 87(2)(b), PO Patrick Donofrio used physical force against § 87(2)(b)	G . Complaint Withdrawn

Case Summary

On August 26, 2012, § 87(2)(b) filed a complaint with the CCRB on behalf of her son, § 87(2)(b) via the Call Processing System. § 87(2)(b) filed a duplicate complaint with IAB via telephone on August 26, 2012. § 87(2)(b)'s complaint was forwarded to the CCRB on September 5, 2012 via IAB log #12-45821. On September 8, 2012, § 87(2)(b) filed a complaint with the CCRB via the Call Processing System. A summary of these complaints is outlined below.

At approximately 3:30 a.m. on August 26, 2012, § 87(2)(b), § 87(2)(b), § 87(2)(b) and a male identified only as § 87(2)(b) were at a party at § 87(2)(b), in Queens. At least fifty people were at the party. As the event winded down, § 87(2)(b) who is on crutches due to recent surgery, was standing in the driveway. Several officers, including Sgt. Sonia Christian and PO Matthew Vorraro of the 113th Precinct, approached § 87(2)(b). These officers knocked § 87(2)(b) to the ground and began striking him (**Allegation A, B, and C**). This was witnessed by a large crowd which included § 87(2)(b) and § 87(2)(b). The officers then moved to break up the crowd. Several individuals were struck by the officers, including § 87(2)(b) and § 87(2)(b) (**Allegations D and E**). § 87(2)(b) was also arrested. § 87(2)(b) was then taken to § 87(2)(b). A few hours later, PO George Brancaccio and PO Patrick D'Onofrio of the 113th Precinct escorted § 87(2)(b) out of the hospital to their vehicle, in order to bring him to the stationhouse for processing. PO Brancaccio then slammed § 87(2)(b)'s head into the side of the vehicle.

(Allegation F). PO D’Onofrio then shut the car door on § 87(2)(b) s bandaged foot **(Allegation G).**

IAB log #12-45821 identified Sgt. Sonia Christian and PO Matthew Vorraro of the 113th Precinct as two of the officers who were physically involved with § 87(2)(b) at § 87(2)(b). This was confirmed in the narrative of the AIDED reports filed for both officers. § 87(2)(g) § 87(2)(b). In her initial complaint, § 87(2)(b) provided the names “Brancassia” and “Donnofrio” for the officers who escorted § 87(2)(b) to their car at the hospital, as well as giving the shield number “30822” for “Brancassia.” The shield number corresponded to PO George Brancaccio of the 113th Precinct. A search of the CTS database revealed that PO Patrick D’Onofrio is the only officer at the 113th Precinct with a name similar to “Donnofrio.” § 87(2)(g) § 87(2)(b) None of those interviewed were able to provide any additional details about the other officers present at § 87(2)(b) § 87(2)(b). Several of the officers listed in arrest reports from the incident were from commands other than the 113th Precinct. § 87(2)(g) § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) appeared for an interview on September 11, 2012. After § 87(2)(b) gave his sworn statement, both he and his mother decided that they would like to withdraw the complaint on the advice of their attorney. Both individuals affirmed that they were not coerced into withdrawing their complaint by the NYPD or the CCRB. These conversations were recorded digitally and are saved within Investigative Action #38 and #39. These conversations were confirmed by Team Manager Winsome Thelwell. § 87(2)(b) signed a withdrawal form, which has been added to the case file. A first please-call letter was sent to § 87(2)(b) on September 10, 2012. Between September 10, 2012 and September 14, 2012, three telephone calls

were made to § 87(2)(b). On the first call, a voicemail was left. On the second call, § 87(2)(b) stated that he wanted to consult with his attorney before continuing with his complaint. On the third call, § 87(2)(b) stated that the undersigned investigator should consult with his attorney, § 87(2)(b), before scheduling an interview. Between September 14, 2012 and September 19, 2012, three calls were made to § 87(2)(b). Messages were left on each occasion. Final please-call letters were sent to § 87(2)(b) and § 87(2)(b) on September 19, 2012. None of the letters sent as part of this investigation were returned to the CCRB by the US Postal Service. On September 19, 2012, a final call was made to § 87(2)(b). § 87(2)(b) reiterated that he would not continue with his complaint until his lawyer agreed to it. In an attempt to obtain a sworn statement from § 87(2)(b) four telephone calls were made and two letters were sent to § 87(2)(b) while three telephone calls were made and one letter sent to § 87(2)(b), § 87(2)(g), it is recommended that this case be closed as **complaint withdrawn**.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date